

FACULTY OF LAW, BHABHA UNIVERSITY, BHOPAL

Jatkhedhi, NH-12, Hoshangabad Road, Bhopal-462026

EXAMINATION SCHEME

L L.B., Semester - IV

S. No.	Subject Code	Name of Subject	Marks Allotted						Total Marks	Credit/Contact Hours Per Week			Total Credit
			Theory		Internal Assignment		Practical / Viva-Voice			L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks					
01.	LLB-401	Law of Evidence (Bhartiya Sakshya Adhiniyam - 2023)	80	32	20	8	0	0	100	5	1	0	6
02.	LLB-402	Media And Law	80	32	20	8	0	0	100	5	1	0	6
03.	LLB-403	Law of Taxation	80	32	20	8	0	0	100	5	1	0	6
04.	LLB-404	Constitutional Law	80	32	20	8	0	0	100	5	1	0	6
05.	LLB-405	Public International Law	80	32	20	8	0	0	100	5	1	0	6
06.	LLB-406	Professional Ethics, Bar Bench Relation & Accountability for Lawyers	80	32	0	0	20	8	100	5	0	1	6
Total			480	192	100	40	20	8	600	30	5	1	36

L : Lecture

T : Tutorial

P : Practical

REGISTRAR
Bhabha University, Bhopal

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LL.B. PART - II SEMESTER - IV

PAPER - I Law of Evidence

Bhartiya Sakshya Adhiniyam

Unit - I

Basic Concepts of Evidence Law

1. Introduction to Evidence Law
 - a. Definition and scope of evidence
 - b. Historical development and significance of evidence law
2. Relevancy of Facts
 - a. Facts in issue and relevant facts
 - b. Relevancy and admissibility of evidence
3. Types of Evidence
 - a. Oral evidence
 - b. Documentary evidence
 - c. Primary and secondary evidence
4. Presumptions and Burden of Proof
 - a. Legal presumptions
 - b. Burden of proof and its implications
5. Judicial Notice
 - a. Facts judicially noticeable
 - b. Scope and limitations

Unit - II

Relevancy of Facts (Sections 3-50)

1. General Principles of Relevance
2. Admissions
3. Confessions
4. Statements by Persons Who Cannot be Called as Witnesses
5. Statements made under special circumstances
6. Judgments of Courts when relevant
7. Opinions of Third Persons When Relevant
8. Character when relevant

Unit - III

On Proof, Oral evidence, Documentary evidence and related law (Sections 51-103)

1. Facts Which Need Not be Proved
2. Oral Evidence
3. Documentary Evidence
4. Public Documents
5. Presumptions as to Documents
6. Exclusion of Oral Evidence by Documentary Evidence

Unit - IV

Production and Effect of Evidence (Sections 104-168)

1. Burden of Proof
2. Estoppel
3. Witnesses
4. Examination of Witnesses

Unit - V

Improper Admission and Rejection of Evidence and Miscellaneous (Sections 169-170)

Improper Admission and Rejection of Evidence (Sections 169-170)

- a. No new trial for improper admission or rejection of evidence
- b. Repeal and savings (Section 170)
- c. Impact of Technology on Evidence Law
- d. Challenges and solutions
- e. Future trends in evidence law

Suggested Readings

1. K. A. Pandey, V. P. Sarathi's Law of Evidence (Eastern Book Company) (2023).
2. Ratanlal & Dhirajlal, The Law of Evidence (LexisNexis) (2021).
3. Sarkar, Law of Evidence – In India, Pakistan, Bangladesh, Burma, Ceylon, Malaysia & Singapore (LexisNexis) (2020).
4. Woodroffe and Amir Ali, Law of Evidence (LexisNexis) (2020).
5. Chief Justice M Monir, Law of Evidence (Universal Law Publishing) (2016).

L.L.B. PART-II SEMESTER - IV
PAPER - II MEDIA AND LAW

UNIT - I Mass Media - Types of - Press Films, radio Television

1. Ownership patterns - press - private - public, 2. Ownership patterns - films Private
3. Ownership patterns - radio & Television, Public,
4. Differences between visual and non - visual Media - Impact on peoples minds

UNIT - II Press - Freedom, of speech and Expression - Article 19 (1) (a)

1. Includes Freedom of the Press 2. Laws of defamation, obscenity, blasphemy and sedition
3. The relating to employees wages and service conditions
4. Price and pages schedule Regulation, 5. Newsprint control order
6. Advertisement - is it included within freedom of speech and expression?
7. Press and the monopolies and Restrictive trade practices Act.

UNIT - III Films - for Included in freedom in of speech and expressions?

1. Censorship of films - constitutionality, 2. The Abbas case
3. Differences between films and press - why pre - censorship valid for films but not for the press
4. Censorship under the cinematograph Act

UNIT - IV Radio and television - Government monopoly

1. Why Government department?, 2. Should there be an autonomous corporation?
3. Effect of television of people, 4. Report of the chandda committee
5. Government policy, 6. Commercial advertisement
7. Internal security of serial etc 8. Judicial Review of Doordarshan decisions : Freedom to telecast

UNIT - V Constitutional Restrictions

1. Radio and television subject to law of defamation and obscenity.
2. Power of legislate - Article 246 read with the seventh schedule.
3. Power of impose tax - licensing and Licence fee

RECOMMENDED BOOKS:-

1. M.P. Jain, Constitutional Law of India (1994) Wardha
2. H.M. Seervai, Constitutional Law of India Vol. (1991) Tripathi, Bombay
3. Neelamalar - Media Law and Ethics PHI
4. John B. Haward, "The Social Accountability of Public Enterprises" in Law and community contn in New Development Strategies (International Center for law in Development 1980)
5. Bruce Michael Boyd, "Film censorship in India : A Reasonable Restriction on freedom of speech and expression" 14 J.I.L.I. 501 (1972)
6. Rajeev Dhavan "On the law of the press in India" 26 J.I.L.I. (1984)
7. Rajeev Dhavan, "Legitimizing Government Rhetoric; Reflections on some Aspects of social press Commission" 26 J.I.L.I. (1984)
8. Soil Sorabjee, Law of press Censorship in India (1976)
9. Justice E.S. Venkaramiah, freedom of press: Some Recent trends (1976)
10. D.D. Basu, The Law of press of India (1980)
11. Students should consult relevant volumes of the Annual Survey of Indian Law Published by Indian Law Institute. (Constitutional Law 1 & 11 Administrative and Public Interest litigation.
12. V.N. Shukla Constitutional Law of India
13. डॉ. पाण्डे जयनारायण भारत की संवैधानिक विधि
14. एम.पी. जैन भारत की संवैधानिक विधि
15. पी.क. त्रिपाठी भारत संविधान

L.L.B. PART-II SEMESTER - IV
**PAPER – III LAW OF TAXATION (INCOME TAX, WEALTH TAX,
CENTRAL SALES TAX & MP COMMERCIAL TAX)**

The following enactments are in course:

1. Income tax act 1961
(As amended upto date) (Whole act)
2. Central sales tax act, 1956
(As amended upto date) (Whole act)

UNIT – I Income Tax Act, 1961

History of tax law in India, Fundamental principles relating to tax government financial policy, tax structure and their role in the natural economy. Concept of tax, Nature and characteristics of taxes, Distinction between, Tax and fee, Tax and cess, Direct and indirect taxes, Tax evasion and tax avoidance, Scope of taxing powers of parliament, state legislature and local bodies,

UNIT - II

Income and total income, Income not included in total income, Deemed income, Clubbing of income, Assessee, Person, Tax Planning, Chargeable income

UNIT - III

Heads of income, Salaries, Income from house property, Capital from business of profession, Capital gains, Income from other sources, Deductions, relief and exemptions, Rate of Income Tax, Income tax authorities, Power and functions, Offences and penal sections, Settlement of grievances, Authorities, powers and functions

UNIT – IV Central Sales Tax Act, 1956

Sale of purchase of goods, Meaning of sale, Sale in the course of interstate trade and commerce, Sale to take place outside as state, Sale in the course of export of import, Charge of tax, Exemption and rebate, Sales tax authorities, Offences and penalties, Constitutional perspectives, Constitutional perspectives

UNIT - V

Commr of Income Tax Vs. Suttlej Cotton Mills Supply Agencies Ltd. (1975) 100 ITR 706, 711 (SC). Manglore Electric Supply Co. Ltd. Commr of I.T. (1978) 113 ITR 635 (SC).

RECOMMENDED BOOKS:-

1. A.K. Saxena : Income tax act
2. Kailash Rai : Income tax act
3. V.K. Singhania : Students guide to income tax
4. P.C. Gang : Central Sales tax law in India
5. Ramesh : Supreme Court on direct taxes (Bharat law house, New Delhi)

L.L.B. PART-II SEMESTER - IV
PAPER – IV CONSTITUTIONAL LAW – II

UNIT - I

Administration of Union Territories, The Panchayat : and Munic Lities, The schedule and tribal areas

UNIT – II

Relation between the Union and the State, Distribution of legislative power, Administrative relations, Disputes relating to water, trade, commerce and intercourse within territory of India

UNIT - III

Financial provisions: Property, contracts, rights, liabilities obligation and suit Public service commissions, service under the Union and the States

UNIT - IV

Tribunals, elections, special provisions, relating to certain classes, official language

UNIT - V

Emergency provisions : Proclamation of emergency, effect of emergency, financial emergency, Amendment in the Constitutions

RECOMMENDED BOOKS:-

1. D.D. Basu, Shorter Constitution of India, (1996), Prentic Hall of India, Delhi
2. H.M. Seervai, Constitution of India, vol. 1-3 (1992), Tripathi, Bombay
3. M.P. Singh (ed.) V.N. Shukla, Constitutional Law of India (2000), Oxford
4. Indian Constitution, V.N. Shukla
5. Constitution of India, V.P. Mahajan
6. भारत का संविधान – जय नारायण पाण्डे

L.L.B. PART-II SEMESTER - IV
PAPER – V PUBLIC INTERNATIONAL LAW

UNIT - I

Definition and concept of international Law, Source of International Law, Historical development of International Law

UNIT - II

Relationship of International Law and Municipal Laws, Subject of International Law, place of individuals in International Law

UNIT - III

States, recognition, States, Succession, Acquisition and loss of state territory

UNIT - IV

Responsibilities of state CBBT, Nationality, aliens, Asylum, extradition, diplomatic agents, treaties

UNIT - V

International organizations – U.N.O., including in its organs and International criminal court, Settlement of Disputes, International terrorism, disarmament

RECOMMENDED BOOKS:-

1. S.K. Kapoor : International Law
2. R.P. Anand : Salient Documents in International Law
3. S.C.H. Warzenberger : A Manual of International Law
4. J.G. Starke Introduction to International Law
5. Gurdeep Singh : International Institutions
6. D.W. Bowett : International Institutions
7. Oppenheim : International Law
8. Breirly : Law of Nations

L.L.B. PART-II SEMESTER - IV
PAPER – VI PROFESSIONAL ETHICS, BAR BENCH RELATION & ACCOUNTABILITY FOR LAWYERS (CLINICAL-II)

Note :- The written exam of this paper will have 80 marks and viva-voce will carry 20 marks, Written examination will be conducted by the university, Viva-voce of this paper will be conducted by the University. Viva-voce of this paper will be conducted by a panel of two examiners out of which one external examiner shall be appointed by the examination committee of the university and internal examiner shall be appointed by the Principal/Director/Head of the Institution concerned. The remuneration shall be as per the university norms.

UNIT – I Admission, Enrolment & rights of advocate

Importance of Legal Profession, Persons who may be admitted as advocate on a State roll, Disqualification for enrolment, Rights of Advocates, State Bar Councils - Establishment and organization, Powers and Functions, Bar Council of India – Organization, Powers and Functions

UNIT – II Ethics of Legal Profession

Meaning, nature and need, Duty to all clients

UNIT – III Punishment for professional or other misconduct

Professional or other misconduct – meaning and scope, The body or authority empowered to punish for professional or other misconduct, State Bar Council and its disciplinary committee, Bar Council of India and its disciplinary committee, Complaint against advocates and procedure to be followed by the disciplinary committee, Remedies against the order of punishment

UNIT – IV Bench Bar Relation

Role of Judge on maintaining rule of Law, Mutual respect, Maintenance of orderly society, Invaluable aid of advocates to judges, Privilege of advocates, Duty to avoid interruption of council, Administration of Justice clean & pure, Uncourteous conduct, misconduct of lawyers and insulting language

UNIT – V Meaning and Categories of contempt of court

Contempt of court – its meaning and nature, Kinds of contempt – Criminal contempt, Civil Contempt, Contempt by Lawyers, Contempt by judges, magistrates or other persons acting judicially, Contempt by State, Corporate bodies & other officers

RECOMMENDED BOOKS:-

1. Mr. Krishnan Murty Iyer : Advocate
2. The Contempt Law and Practice (Contempt of Courts Act 1971)
3. The Bar Council Code of ethics
4. Advocate Act
5. Pleadings, Drafting & Conveyancing - Jhabvala
6. 50 selected opinion of Disciplinary Committees of Bar Council and 10 major Supreme Court on the subject
6. कंलाश राय विधिक आचार, अधिवक्ता की जबाबदेही एवं बे" बार संबंध